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POLITICS

Explainer: What's behind Zelensky's public ousting of top officials

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Ivan Bakanov gestures as he holds a press conference in Kyiv on July 16, 2019. (SERGEI SUPINSKY/AFP via Getty Images)

Editor's Note: Prosecutor General Iryna Venediktova and Security Service Head Ivan Bakanov were fired by parliament on July 19, 10 hours after the article was published.

President Volodymyr Zelensky dropped major news on a typically slow Sunday evening, removing from office two of his staunchest allies – Prosecutor General Iryna Venediktova and Security Service Head Ivan Bakanov.

Zelensky cited the high number of suspected traitors in their agencies' ranks as the main reason for his decision.

"As of today, 651 criminal proceedings have been registered regarding high treason and collaboration among employees of prosecutors' offices, pre-trial investigative bodies, and other law enforcement agencies," Zelensky said in an address on July 17, an hour after the announced dismissals.

"Such an array of crimes against national security and connections between the employees of Ukrainian and Russian secret services pose very serious questions about the leadership of these agencies," Zelensky added.

Yet according to Ukraine's Constitution, the president lacks the powers to single-handedly fire the two officials, with their fate to be decided by a parliamentary vote.

The Kyiv Independent looks into what led to the ousting of Zelensky's top allies, what happens next, and whether their departure signals reforms.

What happened and why is it important?

On July 17, Zelensky signed two separate decrees removing Venediktova and Bakanov from office, in what is the biggest government shakeup in two years.

The decision came as a shock for many: Both officials are known as long-time loyal allies of Zelensky.

Venediktova has been prosecutor general since March 2020. She has repeatedly come under criticism from anti-corruption activists and the media, who point to her failure to prosecute high-profile cases and her office's role in sabotaging corruption investigations against people affiliated with Zelensky, including members of his party and administration.

Zelensky's childhood friend and long-time employee Bakanov was appointed in August 2019. Before becoming the head of the Security Service (SBU), Bakanov had no experience in public service or law enforcement agencies. He was a lawyer and a top manager at Zelensky's entertainment company Kvartal 95.

In the weeks before his dismissal, several media outlets reported that Zelensky wanted to fire Bakanov for failing to adequately respond to Russia's full-scale invasion of Ukraine.

Ukrainska Pravda reported it in early June, citing their sources in the administration and Politico echoed it later that month. Zelensky responded at the time that if he really wanted to fire Bakanov, he would have done it already.

On July 17, Zelensky removed Bakanov. The decree said the security agency chief was neglecting his duties.

Bakanov and Venediktova didn't respond to the Kyiv Independent's request for comments.

Bakanov hasn't yet said anything about the removal. Venediktova put out a cryptic Facebook post, where she appeared to hint that her dismissal wasn't final.

So are they fired?

Officially, not yet.

While most media, including the Kyiv Independent, initially reported the removal as firing, the president's administration made a clarification the next day.

Andriy Smyrnov, deputy head of the President's Office, said on July 18 that Venediktova and Bakanov were not fired, but temporarily removed amidst an ongoing investigation.

"We're not talking about the dismissal of these two officials yet," he added. But hours later, Zelensky sent a motion to dismiss Bakanov to parliament.

The exact wording of the presidential decrees has Bakanov "removed" and Venediktova "suspended."

Head of the Security Service of Ukraine Ivan Bakanov and Prosecutor General of Ukraine Iryna Venediktova hold a briefing on May 11, 2021, in Kyiv. (Photo credit should read Volodymyr Tarasov/ Ukrinform/Future Publishing via Getty Images)

In bureaucratic terms, this means that both are removed from office until further notice, with their duties being transferred to their respective deputies – Vasyl Maliuk in the Security Service and Oleksiy Symonenko in the Prosecutor General's Office.

To officially fire Venediktova and Bakanov, the president must submit a motion to parliament requesting the two officials be removed.

A motion to dismiss Bakanov was sent to parliament late on July 18. The parliament is expected to approve it in the next two days.

A motion to dismiss Venediktova hasn't yet been submitted.

"If a motion is sent to parliament, I will not hesitate and will report to parliament," Venediktova said.

Why were Bakanov and Venediktova removed?

According to Zelensky, both were removed because of endemic treason in their agencies.

The accusation isn't a surprise. There have been signs that Zelensky is after the SBU for failures related to the invasion.

In April, Zelensky deranked two top generals of the Security Service – Andriy Naumov and Serhiy Kryvoruchko – because they "violated their oath and betrayed their homeland."

Naumov was the former head of SBU domestic security, while Kryvoruchko headed the Security Service in Kherson Oblast, where the Russian invasion was particularly successful.

According to Zelensky, more than 60 employees of the Prosecutor General's Office and the Security Service remain in areas recently occupied by Russia and are collaborating with Russians there.

On July 16, the State Investigation Bureau said that a top-level Security Service official had been arrested for leaking intelligence and classified information to the Russian special services.

Although the Bureau did not specify the name of the official, the Ukrainska Pravda media outlet identified him as Oleh Kulinich, the former deputy head of the SBU in Crimea.

"Such an array of crimes against the foundations of the national security of the state and the connections that have been recorded between the employees of the security forces of Ukraine and the special services of Russia pose very serious questions about the relevant leaders," Zelensky said.

For Venediktova the reasoning was similar, with Zelensky's spokesman Sergii Nykyforov saying that "hundreds of treason cases are in the works."

Will they be actually fired?

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Bakanov, yes.

Opposition lawmaker Yaroslav Zheleznyak, representing the Voice Party, said that parliament is expected to convene "very soon."

It's nearly impossible for the parliament led by Zelensky's Servant of the People Party not to support the president's decision, and most opposition parties have long publicly criticized Bakanov for resisting to reform Ukraine's archaic intelligence service.

Venediktova will also be sent packing soon, according to officials close to the President's Office not authorized to speak to the press.

According to one high-ranking law enforcement official, the President's Office is dissatisfied with Venediktova's activities which he says is her attempt at "promoting herself."

Since the beginning of Russia's war against Ukraine, Venediktova painted herself as a crusader tasked with punishing Russian soldiers for war crimes. The official says many of her activities were conducted to whitewash her reputation which suffered from the lack of success in high-profile cases.

Does this mean Zelensky intends to reform these agencies and fight corruption?

Nothing points to that.

Anti-graft activists see changes in the Prosecutor General's Office and the Security Service as a probable attempt to protect corrupt officials rather than to fight them.

Both Symonenko and Maliuk, the people now in charge of leading the agencies, have controversial backgrounds and aren't known for being strong supporters of reforms.

Both of them are close to Zelensky's deputy chief of staff Oleh Tatarov, according to law enforcement sources interviewed by the Kyiv Independent. Tatarov is the administration's most notorious official that was a corruption suspect before Venediktova's office tanked the case against him in 2020-2021.

Tatarov, Symonenko, and Maliuk did not respond to requests for comment.

"I congratulate Tatarov with the effective appointment of his protege as (acting prosecutor general)," Vitaly Shabunin, head of the Anti-Corruption Action Center's executive board, wrote on Facebook.

A law enforcement source told the Kyiv Independent that Symonenko is likely to be even more loyal to Zelensky and his office than Venediktova. Venediktova was sometimes reluctant to do the president's bidding, but Symonenko "will do anything the President's Office desires," said the source, who spoke on condition of anonymity.

What do Symonenko and Maliuk have to do with Tatarov?

In 2020, Symonenko used a Pechersk District Court ruling as a pretext to take a bribery case against Tatarov away from the politically independent National Anti-Corruption Bureau of Ukraine (NABU) and transfer it to Bakanov's SBU.

The SBU eventually buried the case.

The NABU believes the transfer of the Tatarov case to be unlawful. Under Ukrainian law, the Tatarov bribery case falls in its jurisdiction.

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In 2021, both Symonenko and Maliuk attended a birthday party held by Tatarov, according to an investigation by the Ukrainska Pravda news outlet.

Who is Oleksiy Symonenko, new acting prosecutor general?

Symonenko, 45, has been working as a prosecutor and security official since 1998.

Law enforcement sources interviewed by the Kyiv Independent describe him as a protege of Valery Khoroshkovsky, who was the head of the SBU under pro-Kremlin President Viktor Yanukovych.

Symonenko started working at the SBU in May 2010, when Khoroshkovsky became the head of the Security Service. Khoroshkovsky gave Symonenko several awards and a military rank. Symonenko was the first deputy head of the SBU's investigation unit.

Symonenko got another career boost after Khoroshkovsky became close briefly with Zelensky in 2019, when the president publicly offered Khoroshkovsky to lead the State Customs Service. The former SBU chief declined the offer, according to Zelensky.

In 2020, Symonenko became Venediktova's deputy.

A report by Ukrainian investigative journalism group Bihus.Info in February pointed at Symonenko's links to Serhiy Kanaki, a former lawmaker from Yanukovych's Party of Regions. Symonenko's wife co-owns land with Kanaki.

In 2021, Symonenko's name was in the news when he, and not his boss Venediktova, signed a notice of suspicion for ex-President Petro Poroshenko in a treason case. While some hailed the move as a manifestation of justice, others lambasted it as a political vendetta ordered by Zelensky, Poroshenko's main political opponent.

The case has seen no progress since then, and Poroshenko has not been arrested.

Symonenko also supervised the investigation into the murder of journalist Pavel Sheremet in Kyiv on July 20, 2016.

The investigation has come under fire because no firm evidence of the suspects' guilt has been presented, and the suspects have been released from custody. The case has effectively collapsed.

Who is Vasyl Maliuk, the new acting chief of the Security Service?

Not much is known about Bakanov's replacement.

Maliuk, 39, has been an SBU official since 2001.

He became the first deputy head of the SBU and head of the Security Service's anti-corruption and organized crime unit in 2020. However, Zelensky fired him and several other SBU officials in 2021, saying that they had not done enough to combat smuggling.

In March 2022, Maliuk once again became a deputy head of the SBU.

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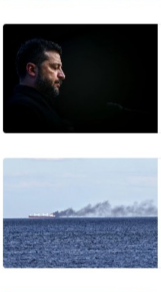

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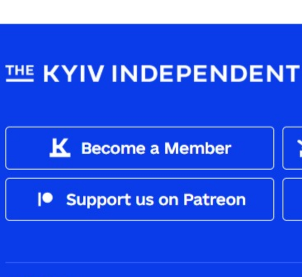

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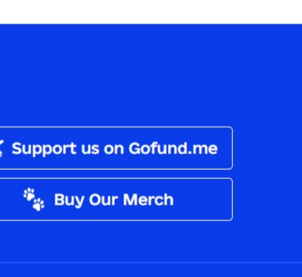

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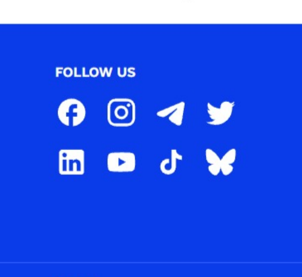

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